

Court No. - 39

Case :- WRIT - C No. - 4766 of 2025

Petitioner :- Rambali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Abhishe Pandey, Irshad Ali

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Sri Abhishek Pandey, learned counsel for the petitioner, Sri Narendra Kumar Tiwari, learned counsel appearing for the Electricity Department and the learned Standing Counsel appearing for the respondent.
2. The present petition has been filed challenging the Notice issued by the respondent No. 3, against the petitioner by which an amount of Rs.1,03,226/- was directed to be deposited.
3. Contention of the learned counsel for the petitioner is that the notice which has been sent to the petitioner with regard to Connection No. 5974069000, was an erroneous one inasmuch as the petitioner's connection had been disconnected long back in the year 1994.
4. Learned counsel for the petitioner therefore states that the bills have been erroneously sent to the petitioner.
5. Learned counsel for the Electricity Department states that for redressal of such grievance of the petitioner, he has an efficacious remedy by approaching the Executive Engineer, under Clause 6.5 of the U.P. Electricity Supply Code, 2005.
6. Learned counsel for the petitioner could not dispute the same.

7. Under such circumstances, we provide that if the petitioner approaches the Executive Engineer of the Electricity Department and moves a representation along with a copy of the certified copy of this order, within a period of 15 days from today, the representation of the petitioner shall be considered and decided within a period of one month thereafter, after affording opportunity of hearing to the petitioner.

8. With these observations, the petition stands **disposed of**.

Order Date :- 27.2.2025

Arun K. Singh

[Dr. Y.K. Srivastava, J.] [Siddharth Varma, J.]